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|            |                                                                 | Defendant to give notice                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <b>107</b> | <b>Lorenzini vs. Revolashion, LLC</b><br><br><b>26-01547153</b> | <p>Motion to Quash Service of Summons</p> <p>Defendants Ilona Alidzaeva and Alexandre Lamothe (“Defendants”) move for an order quashing service of summons and dismissing action for lack of personal jurisdiction as to Revolashion, LLC (“Revolashion”) or, in the alternative, staying or dismissing the action based on forum non conveniens.</p> <p>To the extent Defendants’ Motion is made on behalf of Revolashion, it is improper. Defendants filed their Motion in pro per and they cannot represent the entity defendant. (See CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1145 [“a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney.”]; see also Caressa Camille, Inc. v. Alcoholic Beverage Control Appeals Bd. (2002) 99 Cal.App.4th 1094, 1101-1102 [explaining that qualifications of the human representing an entity is of vital judicial concern and “‘the court is entitled to expect to be aided in resolution of the issues by presentation of the cause through qualified professionals rather than a lay person.’ ”].)</p> <p>To the extent the Motion seeks to quash service on the individual defendants for lack of personal jurisdiction, the Motion also lacks merit. Defendants concede that they reside in this state. Further, they filed an Answer to the Complaint on May 21, 2026, which constitutes a general appearance and makes them subject to this Court’s personal jurisdiction. (Fireman’s Fund Ins. Co. v. Sparks Construction, Inc. (2004) 114 Cal.App.4th 1135, 1145.)</p> <p>Defendants argue that this action should be stayed or dismissed on forum non conveniens grounds because Texas is a suitable alternative forum, the parties agreed</p> |

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|            |                                                             | <p>that Texas law would govern their relationship, all payroll and tax records are Texas-based, and all witnesses with knowledge of the employment relationship reside in Texas, Florida, or Missouri, and not California.</p> <p>Defendants provide no argument or evidence showing that Texas is a suitable alternative forum for Plaintiff's claims. Further, the existence of a choice of law clause does not support Defendants' Motion, as California courts are capable of applying the laws of another state. (Animal Film, Inc. v. D.E.J. Productions, Inc. (2011) 193 Cal.App.4th 466, 475.) Lastly, while the location of evidence and witnesses is relevant to the forum non conveniens analysis, Defendants only argue that the payroll and tax records are Texas-based, not that they exist only in Texas and would be difficult to obtain in California. Further, their argument that no witnesses are located in California is belied by the fact that they both, along with Plaintiff, reside in this state. As a California resident, Plaintiff's choice of forum must not be disturbed " 'unless the balance is strongly in favor of the defendant.' " (EpicentRx, Inc. v. Superior Court (2025) 18 Cal.5th 58, 73.) Here, Defendants have not carried their burden to show that the balance tips strongly in their favor.</p> <p>In light of all the above, the Motion is DENIED.</p> <p>Moving party to give notice</p> |
| <b>108</b> | <p><b>Lovato vs. Valencia</b></p> <p><b>24-01397472</b></p> | <p>Motion for Leave to File First Amended Complaint</p> <p>The Motion for Leave to Amend brought by Plaintiff Brandon Lovato is GRANTED, pursuant to Code of Civil Procedure section 473.</p> <p>Pursuant to Code of Civil Procedure section 473, subdivision (a), the court may, "in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |